

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.**

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**9. S-CV-0051422 EXCLUSIVE AUTO GROUP v. GENERAL MOTORS**

At the direction of the Presiding Judge, the motion for summary judgment is continued to be heard by the **Honorable Trisha J. Hirashima** on **August 18, 2026, at 8:30 a.m. in Department 32.**

**10. S-CV-0052516 FISHER, CHANELL v. EFREN COTA**

The mediation status conference is dropped from calendar in light of the parties' joint declaration filed with the court on June 11, 2026, that includes the information required by the court.

**11. S-CV-0053444 BERGFALK, BRIAN v. MLV HOLDINGS**

Defendant's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant's request for judicial notice is granted.

Defendant's objections 1–4 are overruled. Defendant's objection 5 is sustained because the declaration is neither signed nor dated.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).)